

JACKSON, J., dissenting

B

If the structural consequences of today's paradigm shift mark a step in the wrong direction, then the practical consequences are a five-alarm fire that threatens to consume democratic self-governance and the normal operations of our Government. The majority shoos away this possibility. *Ante*, at 637 (accusing the dissents of "striking a tone of chilling doom that is wholly disproportionate to what the Court actually does today"). But JUSTICE SOTOMAYOR makes this point plain, see *ante*, at 684–685, and I will not belabor it.

Here, I will merely observe that, from a theoretical perspective, philosophers have long considered deterrence to be a key justification for adopting and maintaining systems that ensure accountability for criminal conduct.⁷ For that same reason, some commentators also maintain that decreasing the certainty of accountability for wrongful acts at least arguably reduces incentives to follow the law.⁸

Under the individual accountability model, because everyone is subject to the law, the potential of criminal liability operates as a constraint on the actions and decisions of everyone, including the President. After today, that reality is no more. Consequently, our Nation has lost a substantial

⁷ See, e.g., Plato, *Laws* 274 (B. Jowett transl. 2000) ("Not that he is punished because he did wrong, for that which is done can never be undone, but in order that in future times, he, and those who see him corrected, may utterly hate injustice, or at any rate abate much of their evil-doing"); see also J. Bentham, *The Rationale of Punishment* 20 (1830) ("General prevention ought to be the chief end of punishment, as it is its real justification"); A. von Hirsch, *Doing Justice: The Choice of Punishments* 44 (1976) ("The threat and imposition of punishment is called for in order to secure compliance—not full compliance, but more compliance than there might be were there no legal penalties at all").

⁸ See, e.g., M. Ryan, *Taking Another Look at Second-Look Sentencing*, 81 *Brooklyn L. Rev.* 149, 156, and n. 37 (2015) ("[U]ndermining the . . . certainty of punishment . . . could undermine the deterrence value of punishment").